

POLITY 02 - MAKING OF THE CONSTITUTION

CONTINUOUS ASCII MASTER FLOW DIAGRAM

PANEL 1/12 - ORIGIN OF CONSTITUENT AUTHORITY

1934 M.N. Roy proposal
-> 1935 Congress official demand
-> 1938 Nehru: universal-adult-franchise Assembly without outside interference
-> 1940 August Offer: principle accepted
-> 1942 Cripps: post-war proposal; League sought two Assemblies
-> 1946 Cabinet Mission: operative single-Assembly scheme
TRAP: proposal, demand, acceptance and constitution are four different stages.

PANEL 2/12 - CABINET MISSION DESIGN AND REPRESENTATION

ORIGINAL PLAN: 389 = 296 British India + 93 princely states
296 = 292 Governors' provinces + 4 Chief Commissioners' provinces
roughly one seat per million population
provincial categories: Muslim | Sikh | General
election: respective community members in provincial legislatures,
proportional representation by single transferable vote (PR-STV)
states: rulers' nominees
VERDICT: indirect election + partly nominated + restricted underlying franchise.

PANEL 3/12 - COMPOSITION, PARTITION AND SOURCE-DISCIPLINED NUMBERS

1946 election frame: Congress 208 | League 73 | others 15
9 Dec 1946 first meeting:
 official register/current Sansad-linked account = 207 present
 older local Laxmikanth Sixth Revised Edition = 211
 -> disclose the source difference; do not merge it with strength
After Partition: 299 = 229 provincial + 70 princely-state seats
24 Jan 1950: 284 signatories
TRAP: 389 planned != 207 attendance != 299 strength != 284 signatures.

PANEL 4/12 - FIRST SITTING, OFFICES AND OBJECTIVES

Sachchidananda Sinha -> temporary/provisional President
Rajendra Prasad -> permanent President; constituent business
H.C. Mookherjee + V.T. Krishnamachari -> Vice-Presidents
B.N. Rau -> Constitutional Adviser
H.V.R. Iyengar -> Secretary
S.N. Mukerjee -> Chief Draftsman
13 Dec 1946 Nehru moves Objectives Resolution
22 Jan 1947 Assembly adopts it -> modified value form becomes Preamble.

PANEL 5/12 - SOVEREIGNTY CHANGES OVER TIME

DEC 1946: Cabinet Mission/British legal origin
-> 15 AUG 1947: Indian Independence Act removes external legal subordination
-> CA can frame any Constitution and alter/repeal British enactments
-> same Assembly also acts as Dominion legislature under G.V. Mavlankar
ANALYTICAL RULE: post-1947 sovereignty does not erase indirect-election limits.

PANEL 6/12 - COMMITTEE ARCHITECTURE AND DISTRIBUTED AUTHORSHIP

Nehru: Union Powers | Union Constitution | States
Patel: Provincial Constitution | parent Advisory Committee
Prasad: Rules of Procedure | Steering
Ambedkar: Drafting Committee
Subcommittees:
 J.B. Kripalani-Fundamental Rights | H.C. Mookherjee-Minorities
 Gopinath Bardoloi-Assam tribal/excluded | A.V. Thakkar-other excluded areas
FLOW: committees -> Rau/adviser material -> Drafting Committee -> Assembly.

PANEL 7/12 - DRAFTING COMMITTEE AND ROLE BOUNDARIES

29 AUGUST 1947: seven-member Drafting Committee appointed
Original: Ambedkar, N.G. Ayyangar, Alladi K. Ayyar, K.M. Munshi,
 Mohammad Saadulla, B.L. Mitter, D.P. Khaitan
Replacements: N. Madhava Rau for Mitter; T.T. Krishnamachari for Khaitan
B.N. Rau ADVISED | B.R. Ambedkar CHAIRED/PILOTED | Assembly AMENDED/ADOPTED
S.N. Mukerjee supplied technical drafting.

PANEL 8/12 - PUBLIC DRAFT, READINGS AND LEGAL TRANSITION

FEBRUARY 1948 public Draft -> eight months of comments -> OCTOBER 1948 revised Draft
4 NOVEMBER 1948 first reading/general discussion
15 NOVEMBER 1948-17 OCTOBER 1949 second reading/clause-by-clause
14-26 NOVEMBER 1949 third reading -> ADOPTION 26 NOVEMBER 1949
SIGNING 24 JANUARY 1950 -> GENERAL COMMENCEMENT 26 JANUARY 1950
Article 393 short title | Article 394 split commencement | Article 395 repeals.

PANEL 9/12 - METRICS WITH DENOMINATORS AND SOURCES

Official Sansad facts: 11 sessions | 165 sitting days | 114 Draft days
Constituent Assembly/PIB record: 7,635 amendments proposed | 2,473 moved
Laxmikanth: Drafting Committee sat 141 days | cost about Rs 64 lakh
Elapsed duration:
 Sansad facts page = 2 years, 11 months, 17 days
 local Laxmikanth = 2 years, 11 months, 18 days
RULE: name the source; never turn one denominator into another.

PANEL 10/12 - SYMBOLS, FUNCTIONS AND CONTINUITY

22 JULY 1947 National Flag | MAY 1949 Commonwealth membership
24 JANUARY 1950 National Anthem + National Song + first-President election
26 JANUARY 1950 CA continues as provisional Parliament until elected Parliament
Elephant = Assembly seal | Prem Behari Narain Raizada = English calligraphy
Nandalal Bose team = art | Beohar Rammanohar Sinha = Preamble illumination
58th Amendment 1987 -> Article 394A authoritative Hindi text.

PANEL 11/12 - REPRESENTATION, CONTRIBUTION AND CRITICISM

DEFICITS: restricted indirect election | state nomination | Congress 208/296
 League boycott/Partition | social imbalance | lawyer-politician weight
CONTRIBUTIONS: Hansa Mehta-equality | Dakshayani Velayudhan-caste/untouchability
 Begum Aizaz Rasul-opposed separate electorates
 Jaipal Singh Munda-Adivasi claims
REPLY: committee channels + reasoned debate + 1947 sovereignty + universal franchise
VERDICT: qualified legitimacy, not perfect representativeness.